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State to ban synthetic food dyes in schools

October 3, 2024 | Napa Valley Register (CA)
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OpenURL Link

Gov. Gavin Newsom on Saturday afternoon signed a bill that will ban schools from selling Flamin' Hot Cheetos and other snacks, candies and baked goods that contain synthetic food dye additives.

The bill, introduced by Democratic Assemblymember Jesse Gabriel, D-Encino, will bar schools from distributing or selling products that contain Red No. 40, Yellow 5, Yellow 6, Blue 1, Blue 2 and Green 3 — dyes that one study showed are linked to hyperactivity and adverse behavioral effects in children. It will go into effect in 2028.

Newsom's signed Gabriel's bill — which received broad bipartisan support as well as support from teachers and doctors — as part of a package of bills aimed at increasing California kids' access to healthy and local foods.

"Our health is inextricably tied to the food we eat — but fresh, healthy foods aren't always available or affordable for families," Newsom said in a statement Saturday.

"Today, we are refusing to accept the status quo, and making it possible for everyone, including school kids, to access nutritious, delicious food without harmful, and often addictive additives."

Gabriel praised Newsom's decision to sign the bill.

"California is once again leading the nation when it comes to protecting our kids from dangerous chemicals that can harm their bodies and interfere with their ability to learn," Gabriel said in a statement.

"This bipartisan law will empower schools to better protect the health and wellbeing of students and sends a strong message to manufacturers to stop using these harmful additives."

Beyond Flamin' Hot Cheetos, the soon-to-be-banned dyes are also found in Mountain Dew, M&Ms and Pop-Tarts.

"We know that high-quality nutrition is foundational to our students' well-being and ability to learn. As someone who depended on school meals growing up, I know how critical it is that our children have access to food that is healthy and never harmful," said state Superintendent of Public Instruction Tony Thurmond, who is running to replace the termed-out Newsom as governor in 2026. "This is an important step forward to ensure that California's schools are healthy and equitable learning environments for all."

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- **Citation (apa Style)**
  HATCH The Sacramento Bee, J. (2024, October 3). State to ban synthetic food dyes in schools*Napa Valley Register (CA)*. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/19BFB9620109E650.